

1. **21CV02507 Shumlai, Grace et al v. Shumlai, Gary et al.**

EVENT: Motion to be Relieved as Counsel (Counsel for Defendant Glad Investments and Eretz Chico Properties, LLC)

Motion to be Relieved as Counsel is GRANTED. The Court will sign the proposed order.

2. **22CV01553 Wells Fargo Bank, N A v. Madison, Alexandra**

EVENT: Motion to Vacate Dismissal Under CCP 664.6 and Enter Judgment Pursuant to Stipulation

Motion to Vacate Dismissal Under CCP 664.6 is GRANTED. The Court will sign the proposed order and judgment.

3. **25CV01220 Gudgel, Rick v. Hayer, Manpreet**

EVENT: OEX (Manpreet Hayer)

The Court will swear in the witness.

4. 26CV01624 Beaumont, Amanda et al v. Winco Foods

EVENT: Defendant Winco Foods LLC's Demurrer to the Sixth Cause of Action of the Second Amended Complaint; Motion to Strike Punitive Damages Allegations

The demurrer to the sixth cause of action for negligent hiring is OVERRULED.

An essential element of the cause of action is that defendant knew or should have known the subject employees were unfit and that the unfitness created a particular risk to others. (See CACI 426)

The allegation in paragraph 69 that defendant "retained personnel notwithstanding actual or constructive knowledge of their unfitness" is conclusory to a degree.

Less specificity is required when 'it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy,' [citation]; '[e]ven under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party'

Miles v. Deutsche Bank National Trust Co. (2015) 236 Cal.App.4th 394, 403

Here, Winco possess full information as to whether there was reason to believe the subject employees were unfit prior to the incident. Thus, based on the foregoing pleading rule, Plaintiffs' semi-conclusory allegations are sufficient.

The motion to strike punitive damages is DENIED.

The SAC sufficiently alleges ratification as prescribed by Civil Code 3294(b). Pleading a failure to discipline or terminate the subject employees sufficiently alleges ratification. (See *Hart v. Nat'l Mortgage & Land Co.* (1987) 189 Cal.App.3d 1420, 1432-1433) The SAC alleges in paragraph 34 that " ... to date Defendants have not disciplined, retrained or taken corrective action against any loss prevention personnel involved in the incident ..."

Winco seems to suggest the pleading must identify by name the managing agent or other individual prescribed in 3294(b) who ratified the conduct. While the pleading does not identify a name or names, paragraph 34 does identify categories of individuals including officers, directors, managing agents of Winco.

While it could be argued these allegations are conclusory because they restate the language of 3294(b), Winco has not cited any authority (nor is the Court aware of any) that names of individuals who qualify as managing agents must be alleged at the pleading stage.

Plaintiff shall prepare and submit the form of order within two weeks. Defendant shall file an answer within 20 days.